

The Court need not address whether the other authority Plaintiff relies upon provide for a private right of action at this time.

Stay

Plaintiff seeks a stay of this matter pending the California Supreme Court's ruling on *K.C.* While the case has been fully briefed, the California Supreme Court has not scheduled oral argument. As it is unknown when a ruling on the appeal will be issued, the Court declines to stay the proceedings indefinitely pending the decision from the California Supreme Court.

Conclusion

The County's MJOP is **DENIED**.

4. 9:00 AM CASE NUMBER: C23-02588
CASE NAME: JAVETA JOHNSON VS. YAQUELIN REYES
RE KEITH JORDAN PETITION FOR APPROVAL OF COMPROMISE OF CLAIM (PERSON WITH A DISABILITY)

FILED BY:

TENTATIVE RULING:

Petitioner Sandra Jordan, the duly appointed guardian ad litem herein on behalf of the claimant Keith Jordan (the "Claimant"), filed a Petition for Approval of Compromise of Claim (Person with a Disability) on or about February 11, 2026 (the "Petition for Approval of Compromise") seeking court approval of the compromise and proposed disposition set forth therein. See Code Civ. Proc. § 372 and Rule 7.950 *et seq.* of the California Rules of Court (CRC). The Petition for Approval of Compromise was set for hearing on June 22, 2025. At the request of the moving party, the matter was continued to August 10, 2026. See Order entered June 22, 2026.

Analysis

The Petition for Approval of Compromise is unopposed. The Court has considered the verified Petition for Approval of Compromise.

The proposed terms indicate \$6,000 in attorneys' fees and expenses of \$2,716.60 paid out of the Claimant's share, totaling \$8,716.60 and leaving a balance of \$6,283.40 for the Claimant out of the \$15,000 in settlement funds earmarked for the Claimant. The \$6,000 attorneys' fees represents 40% of Claimant's recovery based on contingency fee arrangement. The Petition for Approval of Compromise indicates that "[t]he money will be held by Sandra Jordan for the benefit of Keith Jordan."

Aside from the two issues discussed below, the Court concludes the proposed terms are just and reasonable.

As set forth in the tentative ruling for the prior court hearing date, the Court is concerned about the 50% split of the total expenses (\$5,433.20) given the non-equal split of the settlement proceeds. The Court is also concerned about what safeguards will be put in place to ensure that the proceeds will be used for benefit of Claimant.

No further filings have been made addressing the above issues. No supplemental or amended pleadings have been filed.

Disposition

The Court finds and rules as follows:

1. The Petition for Approval of Compromise is DENIED, without prejudice to resubmission once the above issues are addressed.
2. The Court shall issue the order after hearing.

5. 9:00 AM CASE NUMBER: C24-01160
CASE NAME: DENEA MARHX VS. INTERNATIONAL CHURCH OF THE FOURSQUARE GOSPEL
BIFURCATE TRIAL
FILED BY: INTERNATIONAL CHURCH OF THE FOURSQUARE GOSPEL
TENTATIVE RULING:

Defendant International Church of the Foursquare Gospel (“International Church”) filed a Motion to Bifurcate Discovery on May 1, 2026 (the “Motion to Bifurcate Discovery”). The Motion to Bifurcate Discovery was set for hearing on August 10, 2026. The motion is opposed.

Background

International Church seeks an order “bifurcating discovery in this action, such that further discovery is limited to the ministerial exception under the First Amendment,...” See Notice of Motion filed May 1, 2026.

Plaintiff Denea Marhx (“Plaintiff”) filed an opposition on July 28, 2026, including an opposition declaration.

Analysis

Since the filing of this motion, the Court has considered and denied International Church’s a motion for summary judgment. See Minute Order dated July 28, 2026. The Court addressed and rejected the International Church’s contentions that it was entitled to summary judgment as a matter of law that the Plaintiff as an employee within the scope of the ministerial exception. It found triable issues of fact on that issue.

Accordingly, the Court is not going to dispose of this action and the claims at issue before trial solely on the grounds of the purported ministerial exception. Therefore, the Court does not conclude that it would be appropriate or justified to divide the discovery into the “phases” as International Church proposes by this motion (the first proposed phase being discovery solely as to International Church’s affirmative defense that the ministerial exception bars Plaintiff’s employment claims).

Disposition

The Court further finds and orders as follows:

1. The Motion to Bifurcate Discovery is DENIED.
2. The moving party shall prepare the order after hearing.